

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF NEW YORK

-----X
GERONIMO PELLERANO,

Index No.:
Date Purchased:

Plaintiffs,

SUMMONS

-against-

Plaintiff designates
NEW YORK COUNTY
As the place of trial

THE CITY OF NEW YORK, NEW YORK
POLICE OFFICER ROBERT GIERY,
SHIELD NO.: 24648, SERGEANT RICARDO
MONTILLA, SHIELD NO.: 5419 in their individual
and official capacities and OFFICERS JOHN AND
JAMES DOE, names presently unknowable by
Plaintiff, and meant to designate additional
offending officers,

The basis of venue is:
Place of occurrence

Defendants.

-----X
To the above named Defendants:

You are hereby summoned to answer the Complaint in this action and serve a copy of your Answer, or, if the Complaint is not served with this Summons, to serve a Notice of Appearance on the Plaintiff's attorneys within twenty days after the service of this Summons, exclusive of the day of service, where service is made by delivery upon you personally within the state, or within 30 days after completion of service where service is made in any other manner. In case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the Complaint to be assessed by the Court.

Dated: New York, New York
August 6, 2018



MARNI F. SCHLESINGER, ESQ.

Apicella & Schlesinger
Attorneys for Plaintiff
1454 St. Nicholas Avenue
New York, New York 10033
(212) 568-4245

To: The City of New York Corporation Counsel
The City of New York
100 Church Street
New York, NY 10007

To: Police Officer Robert Giery, Shield No.: 24648
NYPD Housing Bureau, PSA4
30 Avenue C
New York, NY 10009

To: Sergeant Ricardo Montilla, Shield No.: 5419
NYPD Housing Bureau, PSA4
30 Avenue C
New York, NY 10009

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF NEW YORK-----X
GERONIMO PELLERANO,

COMPLAINT

Plaintiffs,

Index No.:

-against-

THE CITY OF NEW YORK, NEW YORK
POLICE OFFICER ROBERT GIERY,
SHIELD NO.: 24648, SERGEANT RICARDO
MONTILLA, SHIELD NO.: 5419, in their individual
and official capacities and OFFICERS JOHN AND
JAMES DOE, names presently unknowable by
Plaintiff, and meant to designate additional
offending officers,

Defendants.
-----X

Plaintiff, GERONIMO PELLERANO, by his attorney, Marni F. Schlesinger, a member
of the law firm, Apicella & Schlesinger, respectfully alleges, upon information and belief, as
follow:

**AS AND FOR A FIRST CAUSE OF ACTION ON BEHALF OF GERONIMO
PELLERANO**

1. At the time of the commencement of this action, Plaintiff GERONIMO PELLERANO
was and still is a resident of the County of New York, City and State of New York
2. That the causes of action alleged herein arose in the County of New York, City and State
of New York.
3. That at all times herein mentioned, Defendant CITY OF NEW YORK was and still is, a

municipal corporation and body politic, duly formed, organized and existing under and by virtue of the laws of the State of New York.

4. The CITY OF NEW YORK maintains a Police Department.
5. That on or about May 11, 2017, POLICE OFFICER Robert Giery was employed by the CITY OF NEW YORK and THE NEW YORK POLICE DEPARTMENT.
6. That on May 11, 2017, at approximately 7:30 P.M., POLICE OFFICER Robert Giery was working and acting within the scope of his employment as a Police Officer, and under the color of law.
7. That on or about May 11, 2017, Sergeant Ricardo Montilla was employed by the CITY OF NEW YORK and THE NEW YORK POLICE DEPARTMENT.
8. That on May 11, 2017, at approximately 7:30 P.M., Sergeant Ricardo Montilla was working and acting within the scope of his employment as a Police Officer, and under the color of law.
9. That on or about May 11, 2017, OFFICER[S] JOHN AND/OR JAMES DOE, whose names are presently unknowable by Plaintiff but necessarily known by Defendants as participants in the arrest and prosecution of Plaintiff, were employed by the CITY OF NEW YORK and THE NEW YORK POLICE DEPARTMENT.
10. That on or about May 11, 2017 at approximately 7:30 P.M., OFFICER[S] JOHN AND/OR JAMES DOE were working and acting within the scope of their employment as [a] Police Officer[s], and under the color of law.
11. That at the aforesaid time and place, Plaintiff, GERONIMO PELLERANO, was lawfully present at or in front of 737 East 6th Street, City and State of New York.
12. That prior to his arrest, the Plaintiff, GERONIMO PELLERANO, was at the Manhattan

Apostolic Church located at 740 East 6th Street, City and State of New York, doing volunteer construction work.

13. That at the aforesaid time and place, Defendants POLICE OFFICER Robert Giery, Sergeant Ricardo Montilla, and/or OFFICER[S] JOHN AND/OR JAMES DOE did come in the vicinity where Plaintiff was and proceeded to detain and arrest Plaintiff under charges of possession of a weapon for a pipe Plaintiff had inside his automobile.
14. Plaintiff did not ever possess said pipe in the form of a weapon at any time.
15. That the Defendants, their agents, servants, and/or employees willfully and unlawfully arrested, detained, imprisoned and searched the Plaintiff and took his property which was not given back without any basis in law in fact, and plaintiff being aware of his unlawful confinement was thereby caused fright, shock emotional distress and physical consequences.
16. That the Defendants, their agents and/or employees arrested the Plaintiff without any basis in law or fact by making false accusations against him, when they knew, or in the exercise of reasonable care should have known were false.
17. That the Defendants, Police Officer Robert Giery, Sergeant Ricardo Montilla, and/or OFFICERS JOHN AND JAMES DOE, did knowingly and maliciously provide false information to the prosecutor of the criminal action against Plaintiff thereby initiating and causing him to suffer unjust prosecution that Defendants had no reasonable expectation would succeed.
18. That Defendants, their agents, servants/and or employees continued to prosecute Plaintiff and deny him and threaten his freedom after they knew. Or should have known he was innocent of all charges being alleged against him.

19. That all criminal charges brought against Plaintiff, which were brought under Docket No.: 2017NY027298 in the Criminal Court of the City of New York, New York County, regarding the incident of May 11, 2017, were dismissed by the Honorable Judge Frey on April 18, 2018, and the criminal proceedings were terminated in Plaintiff's favor.
20. That by reason of the aforementioned, the Defendants actions amounted to malicious prosecution.
21. As a result of the malicious prosecution, Plaintiff was deprived of his liberty and suffered the humiliation, mental anguish, indignity and frustration of an unjust criminal prosecution, and was otherwise damaged and injured. The Plaintiff made over six court appearances to defend his liberty against these unjust charges over a period of approximately three hundred forty-two days.
22. That the CITY OF NEW YORK allowed, condoned, permitted and caused a policy and procedure of arresting innocent citizens, almost exclusively citizens of racial minority, and engaging in a policy and procedure of arresting persons upon pretext and/or the fabrication of evidence, without any probable cause or reasonable basis to do so for nefarious, unlawful reasons such as the fulfillment of arrest quotas and the subjugate minority population, and testify falsely so often, omitting such acts or fabricating evidence under pretext, that such conduct is considered routine by the offending officers, without reprimand to the offending officers.
23. That said illegal and unlawful arrests without reasonable or probable cause are a matter of policy, practice, procedure and record and openly acknowledged or known by the Defendants, yet condoned without any reprimand of the offending officers, referral to the District Attorney or Federal Law Enforcement officials for criminal

prosecution, or even bone fide internal investigation to deter actions like those complained of herein.

24. On or about May 11, 2017, at approximately 7:30P.M., across the street from 737 East 6th Street, City and State of New York, the Plaintiff GERONIMO PELLERANO was improperly arrested for possession of a weapon, and confined without knowledge of warrant, proper authority, privilege or justification, having no reason in law or in fact to arrest or confine GERONIMO PELLERANO.
25. At the time and place aforesaid, officers of the New York City Police Department unlawfully detained and/or arrested Plaintiff, had just finished doing volunteer work for the Manhattan Apostolic Church located at 740 East 6th Street, City and State of New York.
26. That the Defendants, their agents, servants and/or employees then arrested and confined the Plaintiff GERONIMO PELLERANO, without any basis in law or fact and without reasonable, probable or just cause or justification.
27. That the Defendants, their agents, servants and/or employees willfully and unlawfully arrested, detained, imprisoned and searched the Plaintiff without any basis in law or fact, and Plaintiff being aware of his unlawful confinement was thereby caused freight, shock, emotional distress and physical consequences.
28. That the Defendants, their agents, servants and /or employees arrested the Plaintiff without any basis in law or fact, by making false accusations against him, when they knew, or in the exercise of reasonable care, should have known they were false.
29. That the Defendants OFFICER[S] JOHN AND/OR JAMES DOE, did knowingly and maliciously provide false information to the prosecutor of the criminal action against

Plaintiff thereby causing him to suffer an unjust prosecution that Defendants had no reasonable expectation would succeed.

30. That Defendants, their agents, servants and/or employees continued to prosecute Plaintiff and deny him and threaten his freedom after they knew, or should have known, he was innocent of all charges being alleged against him.
31. That all criminal charges brought against Plaintiff were begun in malice without probable cause and a reasonable belief that the prosecution would succeed.
32. That by reason of the aforementioned, the Defendants actions amounted to malicious prosecution.

**AS AND FOR A SECOND CAUSE OF ACTION ON BEHALF OF GERONIMO
PELLERANO**

33. That Plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs enumerated 1 through 32 as though more fully set forth herein.
34. That on or about August 8, 2017 and on May 14, 2018, and within 90 days after the claim herein sued upon, Plaintiff caused two Notice of Claims, sworn to by or on behalf of the Plaintiff GERONIMO PELLERANO, to be presented to the Defendant CITY OF NEW YORK, by presenting it to the offices of the Defendant CITY OF NEW YORK, which said Notice of Claims set forth the name and post office address of the Plaintiff and Plaintiff's attorney, the nature of the claim, the time when, the place where, and the manner in which the claim arose and items of damage or injuries claimed to have been sustained, so far as then practicable.
35. At least thirty (30) days have elapsed prior to the commencement of this action since the service of such Notice of Claims as aforesaid and adjustment of payment thereof

a General Municipal Law § 50-h hearing was held on July 10, 2018.

36. That this action is being commenced within one year and ninety days after accrual of this cause of action, or within the time allowed by law.
37. That on or about May 11, 2017 at approximately 7:30P.M., in front of 737 East 6th Street, City and State of New York, Plaintiff, GERONIMO PELLERANO was improperly arrested, and confined without knowledge of warrant, proper authority or justification, having no reason in law or fact to arrest or confine GERONIMO PELLERANO.
38. That the Defendants, their agents, servants and/or employees arrested and confined the Plaintiff without any basis in law or fact and without reasonable, probable or just cause or justification.
39. That the Defendants, their agents, servants and /or employees willfully and unlawfully arrested, detained, imprisoned and searched the Plaintiff and took his property without any basis in law or fact, and Plaintiff being aware of his unlawful confinement was thereby caused freight, shock, emotional distress and physical consequences.
40. That no negligence or actions on the part of the Plaintiff contributed to the occurrences alleged herein in any manner whatsoever.
41. That this cause of action falls within one or more of the exceptions as set forth in CPLR Section 1602.
42. That as a result of the foregoing, the Plaintiff GERONIMO PELLERANO was damaged in a sum which exceeds the jurisdiction of all lower Courts.

**AS AND FOR A THIRD CAUSE OF ACTION ON BEHALF OF GERONIMO
PELLERANO**

43. That Plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs enumerated 1 through 42 as though more fully set forth herein.
44. That on or about August 8, 2017 and on May 14, 2018, and within 90 days after the claim herein sued upon, Plaintiff caused a Notice of Claims, sworn to by or on behalf of the Plaintiff GERONIMO PELLERANO, to be presented to the Defendant CITY OF NEW YORK, by presenting it to the offices of the Defendant CITY OF NEW YORK, which said Notice of Claims set forth the name and post office address of the Plaintiff, the nature of the claim, the time when, the place where, and the manner in which the claim arose and items of damage or injuries claimed to have been sustained, so far as then practicable. At least thirty (30) days have elapsed prior to the commencement of this action since the service of such Notice of Claims as aforesaid and adjustment of payment thereof.
45. That the Defendants Police Officers Robert Giery and Sergeant Ricardo Montillo and OFFICER[S] JOHN AND/OR JAMES DOE did knowingly and maliciously provide false information to the prosecutor of the criminal action against Plaintiff thereby causing Plaintiff to suffer an unjust prosecution initiated and continued without probable cause that Defendants had no reasonable expectation would succeed.
46. That all criminal charges brought against Plaintiff were begun in malice without probable cause nor a reasonable belief that the prosecution would succeed.
47. That no negligence or actions on the part of the Plaintiff contributed to the occurrences alleged herein in any manner whatsoever.

48. That Defendants, their agents, servants and/or employees continued to prosecute Plaintiff and deny him and threaten his freedom after they knew, or should have known, he was innocent of all charges being alleged against him.
49. That all criminal charges brought against Plaintiff, which were brought under docket number 2017NY027298 in the New York Criminal Court regarding the incident of May 11, 2017 was dismissed by the Honorable Judge Frey on April 18, 2018, and the criminal proceedings were terminated in Plaintiff's favor.
50. That all criminal charges brought against Plaintiff were begun in malice without probable cause and a reasonable belief that the prosecution would succeed.
51. That by reason of the aforementioned, the Defendants actions amounted to malicious prosecution.
52. As a result of the malicious prosecution, Plaintiff was deprived of is liberty and suffered the humiliation, mental anguish, indignity and frustration of an unjust criminal prosecution, and was otherwise damaged and injured. The Plaintiff made court appearances to defend his liberty against these unjust charges over a period of approximately three hundred and forty-two days.
53. That no negligence or actions on the part of the Plaintiff contributed to the occurrences alleged herein in any manner whatsoever.
54. That this cause of action falls within one or more of the exceptions as set forth in CPLR Section 1602.
55. That as a result of the foregoing, the Plaintiff was damaged in a sum which exceeds the jurisdiction of all lower Courts.

**AS AND FOR A FOURTH CAUSE OF ACTION ON BEHALF OF GERONIMO
PELLERANO**

56. That Plaintiff repeats, reiterates and realleges each and every allegation enumerated 1 through 55 as though more fully set forth herein.
57. That the Defendants carelessly, recklessly and negligently failed to properly interview, hire, select, train, manage, supervise and control its employees, agents, and/or servants and negligently retained its employees, agents, and/or servants.
58. That the Defendants carelessly, recklessly and negligently failed to properly interview, hire, select, train, manage, supervise and control its employees, agents, and/or servants and negligently retained its employees, agents, and / or servants in the proper conducting arrests.
59. That solely by reason of the aforesaid occurrence, and as a direct and proximate result of the Defendant's negligence, Plaintiff, GERONIMO PELLERANO was denied his freedom and rights under the federal and state constitutions and received mental pain and suffering; that the Plaintiff was made, still is and will continue to be sick, sore, lame and disabled and sustained other injuries, all of which, upon information and belief, will be permanent; that it was necessary and will be so in the future, and that Plaintiff was and in the future will be prevented from attending to Plaintiff's usual vocation and avocations; all to the Plaintiff's damage in a sum which exceeds the jurisdiction of all lower Courts.
60. That this cause of action falls within one or more of the exceptions as set forth in CPLR Section 1602.

61. That as a result of the foregoing, the Plaintiff, GERONIMO PELLERANO was damaged in a sum which exceeds the jurisdiction of all lower Courts.

WHEREFORE, Plaintiffs demands judgment against the Defendants on the First, Second, Third and Fourth Causes of Action inclusive of punitive damages, and attorneys' fees as permitted by statute, all in sums which exceed the jurisdiction of all lower Courts, together with the costs and disbursements of this action.

August 6, 2018

By:



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Apicella & Schlesinger
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To: The City of New York Corporation Counsel
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100 Church Street
New York, NY 10007

To: Police Officer Robert Giery, Shield No.: 24648
NYPD Housing Bureau, PSA4
30 Avenue C
New York, NY 10009

To: Sergeant Ricardo Montilla, Shield No.: 5419
NYPD Housing Bureau, PSA4
30 Avenue C
New York, NY 10009

STATE OF NEW YORK, COUNTY OF

NYSCEF DOC. NO. 1

SS.:

RECEIVED NYSCEF: 08/06/2018

I, the undersigned, an attorney admitted to practice in the courts of New York State,

Check Applicable Box

- ☐ Certification By Attorney certify that the within has been compared by me with the original and found to be a true and complete copy.
- ☐ Attorney's Affirmation state that I am the attorney(s) of record for action; I have read the foregoing and know the contents thereof; the same is true to my own knowledge, except as to the matters therein alleged to be on information and belief, and as to those matters I believe it to be true. The reason this verification is made by me and not by

in the within

and know the contents thereof;

The grounds of my belief as to all matters not stated upon my own knowledge are as follows:

I affirm that the foregoing statements are true, under the penalties of perjury.

Dated:

The name signed must be printed beneath

STATE OF NEW YORK, COUNTY OF

SS.:

I, the undersigned, being duly sworn, depose and say: I am

Check Applicable Box

- ☐ Individual Verification in the action; I have read the foregoing

and know the contents thereof; the same is true to my own knowledge, except as to the matters therein stated to be alleged on information and belief, and as to those matters I believe it to be true.

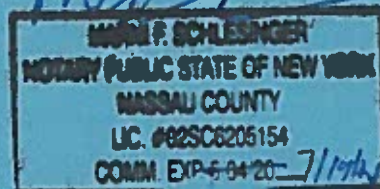
- ☐ Corporate Verification the of a

corporation and a party in the within action; I have read the foregoing

and know the contents thereof; and the same is true to my own knowledge,

except as to the matters therein stated to be alleged upon information and belief, and as to those matters I believe it to be true. This verification is made by me because the above party is a corporation and I am an officer thereof.

The grounds of my belief as to all matters not stated upon my own knowledge are as follows:

Sworn to before me on 6th day of August, 2018

[Signature]
GERONIMO DELLERANO
The name signed must be printed beneath

STATE OF NEW YORK, COUNTY OF

SS.:

(If more than one box is checked — indicate after names type of service used.)

I, the undersigned, being sworn, say: I am not a party to the action, am over 18 years of age and reside at

On

I served the within

Check Applicable Box

- ☐ Service By Mail by mailing a copy to each of the following persons at the last known address set forth after each name below.
- ☐ Personal Service on Individual by delivering a true copy of each personally to each person named below at the address indicated. I knew each person served to be the person mentioned and described in said papers as a party therein:
- ☐ Service by Electronic Means by transmitting a copy to the following persons by ☐ FAX at the telephone number set forth after each name below ☐ E-MAIL at the E-Mail address set forth after each name below, which was designated by the attorney for such purpose, and by mailing a copy to the address set forth after each name.
- ☐ Overnight Delivery Service by dispatching a copy by overnight delivery to each of the following persons at the last known address set forth after each name below.

Sworn to before me on

The name signed must be printed beneath